

Full Exposure:

The Revealing Picture of Jewish Engagement with Tattooing

Conclusion:

To be or not to be tattooed? It is a provocative question which should arouse the modern Jew to expose more than one's skin. The question should provoke the modern Jew to reveal the panoramic picture, which spans millennia, of the Jewish engagement with the practice of tattooing. For captured in this photo is a wide range of different perspectives, from the religious and cultural attitudes of the ancient Israelites preserved in the Biblical texts to the opinions and positions of rabbinic sages maintained in the writings of the classic halachic codes and modern responsa. Only by listening to and considering these varied responses on the topic of tattooing can the contemporary Jew hear and articulate his/her own authentic Jewish response to the question: to be or not to be tattooed?

That question now echoes as often in the halls of our public schools and places of business as it does in billiard halls and biker bars. The gradual shift of the tattoo from the periphery of western society to the mainstream has changed the function and thus the perception of the tattoo. No longer are they considered signs of communal status and affiliation to some seedy sub-culture of civilization. Instead, a growing portion of civil society (suburban moms, college students, professionals, etc.) considers tattooing a legitimate way to express individuality. The Pew Research Center concluded in its study of Generation Nexters in 2007 that "tattoos are the most popular form of [self] expression," as 36 percent of 18-25 year-olds and 40 percent of 26-40 year-olds have at

least one tattoo.¹ It is no wonder, then, as tattooing has grown in acceptance in the general public, an ever-increasing number of Jews have accepted the tattoo as a legitimate way to express themselves.

Although it may appear as a contemporary issue, tattooing has long confronted Judaism and its values from its earliest inception in the Biblical texts. Yet, like many ancient texts, the Bible's guiding message about corporal marks is enigmatic as some passages attest and affirm their use, while another comes to condemn them. Attesting to the use of corporal marks is Genesis 4:15 and Ezekiel 9:4. As marks of Divine protection, the marks written about in these two passages speak of a sacred relationship which exists between the bearer of the mark and God. The application of such marks is not merely attested to, but encouraged in Isaiah. According to this account, Israelites should pledge their allegiance to God by marking their hands as "belonging to the LORD."² Although the mark is not specified as a tattoo, tattooing the phrase "belonging to..." followed by a master's name on the hand was an accepted practice among the exilic Jewish community in Egypt during the 5th century B.C.E.³ Reciprocating this gesture of allegiance, the Isaiah account goes on to report that God symbolically "engraves" the Israelite people "on the palms of [His] hands."⁴ Thus the corporal mark, most likely the tattoo, was known by and potentially practiced in ancient Israel as a tangible way for the people to express their commitment to and appreciation of the covenantal relationship with their national deity.

1. Andrew Kohut, (director). "How Young People View Their Lives, Futures, and Politics: A Portrait of Generation Next." (Washington D.C.: The Pew Research Center, 9 January 2007)

2. Isaiah 44:5

3. For the specific sources as well as a detailed analysis of this practice, see the "Egypt" section in the chapter, "The Background of the Picture: Tattooing in Mesopotamia, Egypt, the Mediterranean, and the Bible."

4. Isaiah 49:16

While marks of Divine allegiance and protection were deemed constructive to ancient Israelite culture, the same cannot be said of tattoos which indelibly demeaned the status of an individual whether as a slave, prisoner, or criminal.⁵ Since the Israelites were considered the reflection of God's image in the world, a cultural distain for these corporal marks which would profane that image may have been captured in the Levitical prohibition of 19:28: "You shall not incise marks [i.e. tattoos] on yourself: I am the LORD."⁶ While it is likely that the prohibition was implemented to root out the pejorative uses of the tattoo practiced by Israel's ancient Near Eastern neighbors, it is just as likely that different positions may have been sustained within Israelite culture. In other words, tattooing may have been both affirmed and denied by the ancient Israelites within the cultural and religious contexts of ancient Judaism.

Bipolarity would not be unique to ancient Judaism. Multiple and often divergent positions regarding tattooing continued to emerge into the classic, medieval, and pre-modern periods of Jewish history. From the Levitical prohibition, the sages of rabbinic Judaism continued to debate issues germane to the topic of tattooing from the second to the 17th century C.E. Generally, it was concluded that to make a tattoo meant to commit two distinct acts: writing and incising, which would result in a mark left upon the skin, whether exposed or not. Although it was never concluded how long the mark must last or what the specific *content* of the tattoo must be in order to have violated the prohibition, a minority opinion did develop among the rabbinic sages of old. According to this position, culpability was not contingent upon the *presence* of a mark. In order to transgress the

5. As shown in the chapter, "The Background of the Picture," tattoos in the ancient Near East were rarely desired by the bearer of the mark as they often served as demarcations of ownership, punishment, criminality, or status as a prisoner-of-war.

6. In the Book of Genesis, this socio-religious belief is articulated as, "God created man in His image, in the image of God He created him," (Genesis 1:27).

prohibition, the minority opinion asserted, the individual must have committed an act of incising and writing ink into the skin with the specific intention to leave a mark.

The majority opinion among the classic rabbinic sages conceded that the *intention* to make a mark is indeed the basic stipulation of the prohibition against tattooing. But, the majority position stressed that an individual cannot be punished unless he/she deliberately acted or assisted in the act of tattooing for the *purpose* of idolatry. Because of this stipulation, the scrape made by a cutting instrument or the mark which results from a healed wound is permitted, for neither intention nor an idolatrous purpose was presumed in the act. However, if an individual consciously acted in incising and writing ink into the skin in order to tattoo a slave, then according to the majority opinion, that individual has transgressed the basic stipulation of the prohibition, but is exempt from punishment because the mark did not serve the purpose of idolatry.

Today's tattoos, in most cases, are also not considered idolatrous to the modern mind. Nevertheless, contemporary rabbinic authorities from the Orthodox, Conservative, and Reform movements of American Judaism continue to defend the prohibition's applicability in modernity. What, then, distinguishes the contemporary rabbinic perspectives on tattooing from one another is not the conclusions, but the processes of the modern *poskim* as they apply the Biblical prohibition, as understood by the classic rabbinic authorities, to contemporary circumstances. Through the various responsa, it was shown that Orthodox rabbis encompass the nuances of tattooing, such as tattoo machines, permanent cosmetics, and Holocaust tattoos almost exclusively through engagement and extension of the rabbinic rules of Jewish law. By this approach, the authority of the

classic rabbinic sages remains absolute, dictating the individual Orthodox adherent's choice even in these contemporary contexts.

However, within the progressive movements of Reform and Conservative Judaism the response to the contemporary confrontation between the personal decision to be or not to be tattooed and the communal values of Judaism cannot be similarly addressed. In a community which prizes personal autonomy, the Reform Movement refracts the approach of its Orthodox counterparts. Although addressing a similar list of innovations, the Reform Responsa Committee in its various responsa on the topic relies heavily upon the rabbinic principles – rather than the rules – of Jewish Law. With the deep meaning and flexible applicability inherent in the principles of *chavalah*, *b'tzelem elohim*, and *kedushah*, the Reform Movement found a way to articulate a response that is persuasive rather than prescriptive, ultimately putting the choice to uphold the communal values of Judaism in the hands of the individual and the personal choice he/she makes.

Between Orthodox and Reform exists Conservative Judaism on the spectrum of American Jewish observance. From this position, the Conservative Committee on Jewish Law and Standards under the leadership of Rabbi Alan Lucas found a unique response to the tension between personal autonomy and communal religious traditions. By balancing the rigidity of the rules of law with the flexibility of the principles of law, the Committee advocates an awareness of and responsibility to the religious traditions of Judaism, while at the same time refraining from condemning the individual who contravenes its terms. In many respects, articulating this approach in one all-encompassing responsum ensures that the prohibition on tattooing will continue to speak to all Conservative Jews regardless of their personal level of communal religious observance.

Despite the lengths taken by the religious authorities of the three major movements of American Judaism to ensure the prohibition's applicability to modern contexts, Jews from all walks of life still choose to be tattooed. From America to Israel, from teenagers to parents, from movement adherents to the unaffiliated, the Jewish community is undeniably part of the modern shift of the tattoo. One may erroneously assume that the community's involvement in this shift is a result of a few selfish individuals who are committing an irreparable rebellion against rabbinic authority and the traditions they maintain through the indelible insertion of ink underneath the skin. While respondents acknowledge that tattooing has everything to do with self-expression, a majority also believe it has *something* to do with Judaism. Judaism, in whatever way it was defined by respondents, often influenced the image to be tattooed or brought deeper meaning to the act of tattooing.

As much as Judaism plays a part in the contemporary Jew's decision to be tattooed, a majority of Jews actually remain ill-informed about the Jewish prohibition on tattooing. Attuned less to the multiple voices of Jewish tradition, and more to the well-intentioned but ultimately misguided voice of a parent or religious leader, many Jews learn that a Jew who voluntarily submits him/herself to tattooing either cannot be buried in a Jewish cemetery or brings dishonor to the Jewish people in light of the Holocaust, when Jews were forcibly tattooed on their forearms with numbers. While these misconceptions are undeniably potent, perpetuating a ruse of Jewish tradition places the entire Jewish community and its future in considerable risk. For the moment the ruse fails and the truth is uncovered, not only will this teaching, but others as well will be covered in a shadow of doubt.

In order to avert this crisis, the time has come for the Jewish community to shift – as the perception of the tattoo has shifted in the eyes of the general public – its approach to tattooing. No longer can fear be a substitute for faith, nor fiction stand in for fact. In order to provide its members with a secure foundation from which to navigate life Jewishly, the Jewish community must be informed of and exposed to the reality of the Jewish engagement with tattooing: from the religious and cultural background of the ancient Israelites (chapter 1) to the halachic borders of the classic rabbinic sages (chapter 2), from the framework of modern *poskim* (chapter 3) to the presentation of tattooing by contemporary Jews (chapter 4). In every decision a Jew is presented an opportunity to either affirm or deny his/her Jewish identity, and by extension, Judaism's place in the world. It is not the choice that matters. What ultimately matters is *how* the decision is made. Taking time, prior to the decision, to look at the picture of the historical Jewish engagement with the practice of tattooing ensures that whatever response an individual Jew makes will be a Jewish response to the question: to be or not to be tattooed?